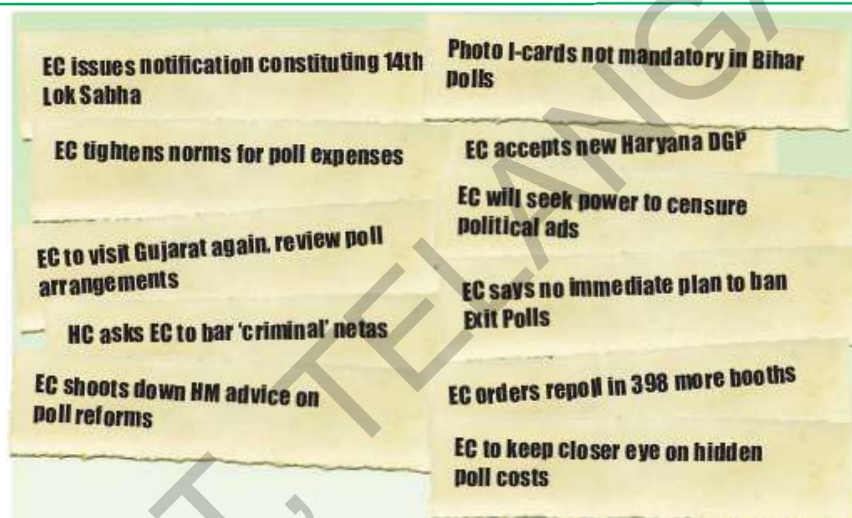




Why are elections necessary in the democracy ? In this lesson we would learn about the set up and mechanism to conduct elections, what powers that set up has and what measures it takes from time to time. We even analyse the democratic, smooth and fair manner in which the elections are conducted. We assess the role of Election Commission in conducting the elections and discuss the reforms that are suitable to the present day situation to improve the prestige of Democracy.



Read these headlines carefully from newspapers during the time of elections. Whose powers are indicated in the lines? What might be the main objectives? Discuss.

16.1 Election System in India

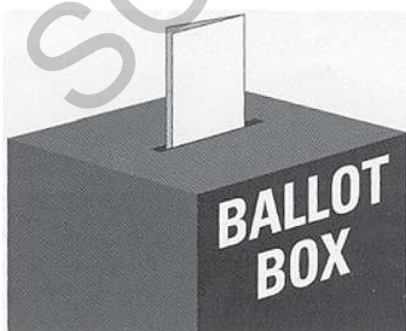


Fig: 16.1 Ballot Box

In a vast country like India which has an enormous population, it may be difficult for all the people to gather and take decisions. So, the need for elections arise. India is the largest democratic country in the world. Since independence, a strong basis for democratic values was laid, by the elections.

The Election Commission of India conducts elections in our country. It frames a Code of Conduct to the political parties. It declares the results of the elections and submits to the central or state governments. By this, it becomes easy to form the government.

16.1.1 The Election Commission of India

The Election Commission of India came into existence on 25 January 1950. This is an autonomous constitutional body. With its authority, it prepares electoral rolls and conducts elections to Lok Sabha, Rajya Sabha, State legislative bodies, the President and the Vice President.



Fig 16.2: Office of the Election Commission, India

By the completion of 60 years on 25 January 2010, the Election Commission of India celebrated Diamond Jubilee and announced 25 January 2011 as 1st Voters Day .

16.1.2 Autonomous status for Election Commission

It is very difficult to conduct elections in India because of a huge population. During the British rule, only 14% of the population had right to vote in the elections. At the time of first General Elections in 1952, there were 17.32 crore voters. At present, the number of voters is above 98.4 crores. For such a country, the Election Commission conducts elections with the help of about 45 lakh staff.



The Central Election Commission has no separate staff to conduct the elections. As per the article 324(6) of the Constitution, with the permission of the President of India and the Governors of the states, it utilises the services of central and state government employees. During such times, the Election Commission has a complete control over the government department. Without the prior permission of the Central Election Commission, no major decisions can be taken.



Fig 16.3: Election Commission logo



16.1.3 The Chief Election Commissioner

The Chief Election Commissioner is the head of the Election Commission of India. Indian Constitution guarantees certain powers to the Chief Election Commissioner to conduct elections for central and state legislatures in a smooth and a fair manner. Usually, he/she is from Indian Civil Services. His/her tenure is 6 years or upto 65 years of age, whichever is earlier. Earlier, the Election Commission of India had only one Election Commissioner. A three member commission has come into existence from 1993 with one Chief Election Commissioner and two Election Commissioners.



Collect the information of other autonomous bodies in India.



There is no difference among the Chief Election Commissioner and other Election Commissioners as to their salary, privileges/designation and powers are concerned. Usually, the decisions are taken unanimously or else taken by a majority vote.

In Indian political system, the Election Commission has been playing an important role. After T.N. Seshan (1990 - 1996) assumed the office, the Election Commission earned a considerable popularity. He took many efforts to eradicate corruption in the elections of India. There was a nationwide recognition to the powers of the Election Commission.



Recommendations of T.N. Seshan

- * 14 days time limit for campaigning after the date of withdrawal of nominations.
- * One candidate should not contest from more than two constituencies at a time.
- * If any candidate is punished for two years, he/she is barred from contesting elections for the next six years.
- * If the contesting candidate expires, the election shall be postponed but not to be abolished.
- * After completion of campaign time, sale of liquor shall be banned for 48 hours.

16.1.4 Functions of the Election Commission

Articles 324 to 329, Part 15 of the constitution states the formation, powers and functions of the Election Commission. The functions are classified as

Initially, the constitution of India declared 21 years as the voting age. But in 1988, 61st Amendment was passed and this was reduced to 18 years.

1. Administrative functions
2. Advisory functions and
3. Quasi judicial functions.

Under these functions, the Election Commission prepares electoral rolls, revises them within the stipulated time, demarcation of constituencies and their territorial limit as per the Delimitation Commission. It announces the schedule of elections, receives nominations, scrutinises, finalises the polling dates, gives recognition to the political parties and allots the symbols to them. It frames and implements the code of conduct to be followed by the parties during elections. It appoints the enquiry officers to observe electoral mal practices.



It advises the President and the Governors of the states regarding the disqualification of the representatives to the Parliament and the state legislatures. It solves the disputes between parties. At this time, it acts like a Quasi judicial authority.

As per the guidelines issued by the Election Commission of India, all the people who attain the age of 18 years on or before the 1st January in the year of elections irrespective of caste, creed, religion, gender, language etc., shall be registered as the voters. The right to vote without any discrimination is called as “universal adult franchise”. The body of voters is called as an ‘Electorate’.

16.2 Political parties in Elections

A political party is formed when it has a written code of conduct and registers at the Election Commission. The party symbols can be allotted by the Elections Commission based on the mandate in the elections, parties are declared by Elections Commission regional or national parties. In a state, if a party gets 3% of valid votes or 3 Assembly seats, it is declared as a regional party. A party can be recognized in more than one state. If a party is recognized in four states with 6% of valid votes or 11 Lok sabha M.P. seats from 4 different states, it is called a national party.

Collect symbols of some national parties and state parties.

16.3 Elections - The code of conduct

The Election Commission announces the schedule of election. Since then, the model code of conduct comes into effect. According to this, all the people and the candidates contesting the elections shall abide by the rules and regulations of the Election Commission. Violation of these rules and regulations is treated as malpractices for which disciplinary action shall be initiated.

16.4 Key points of Code of Conduct

1. The contesting candidates and political parties shall not make any statements pertaining to caste, creed, religion, or regional, while criticizing other parties.
2. No personal comments shall be made that are not relevant to political life.
3. No political announcements targeting a caste or religion shall be made.
4. In places, such as churches, mosques, temples, other holy places, educational institutions, no candidate should canvas/campaign.
5. No candidates shall influence the voters either by giving cash or any articles.
6. No voter shall be used to cast his/her vote in other's identity.
7. No campaigning within 100 mtrs on the day of polling.
8. There should be no campaigning after or before the permitted hours.
9. No political party shall either get voters to the polling station or drop the voters from the polling station.
10. Every one has the right to lead a peaceful life. Taking out rallies in the residential areas and picketing is against the rules.
11. Hosting party flags, tying banners and writing on the walls, pasting posters on the houses are not allowed without permission.



Find out if any disciplinary action was taken against any candidate for violating the code of conduct.

*

Find out if any candidate was found guilty by the judiciary and disqualified from the elections or any political portfolio.

A few people and some organisations have approached the court on the model code of conduct.



16.4.1 Conducting Rallies and Public Gatherings

1. The political parties shall obtain prior permission from the local police to conduct public gathering. They should inform the police about the place of gathering and time, so that the police could make arrangements to protect law and order and regularize the traffic movement.

2. The contesting candidates shall find out if any prior instructions are there in the place where they are planning to hold public gathering while entering the prohibited areas shall strictly follow the rules.



Should political parties campaign through public meetings and rallies only or are there any other ways?

3. They must take prior permission to use loudspeakers. If any one obstructs to the conduct of public gathering, they shall not directly attack instead inform the police.

On the day of Polling

1. The polling personnel shall make all the arrangements to the voters to cast their vote in a democratic and peaceful atmosphere.
2. Leaders of all political parties shall cooperate the polling staff to discharge their duties.
3. The polling agents sitting in the polling booths shall be issued identify cards. The names or the party symbol shall not be on these cards.
4. The campaigning should end before 48 hours of polling day. SMS's also prohibited, alcohol shall not be distributed.
5. Neither the contesting candidate nor the supporters shall gather in large number near the polling booths.
6. There shall not be any posters, flags, symbols and election material in the camps. Any kind food shall not be kept in the camps.



Fig 16.4: Voters in Queue



Elections - Court Judgments:

* In 2013, in the case of Dr. Subramanya Swamy, the Supreme Court stated that the voting machines shall allow the voter to verify that their vote was cast correctly. The Voter Verified Paper Audit Trail (VVPAT) shall enable the voters to get the feedback to whom he/she has cast vote.

* In 2013, in the case of Peoples Union of Civil Liberties, the Supreme Court stated that the voter has the liberty to cast his/her vote against all the contesting candidates. To implement this judgment the Election Commission of India has inserted "None of the above".

* In 2013, in the case of Peoples Union of Civil Liberties, the Supreme Court stated that the contesting candidates either for parliament or for state legislature bodies, shall compulsorily declare the details regarding, his/her crime record, spouse, children's, assets/liabilities and educational qualifications.

16.4.2 Ruling party at the time of elections

There is a chance to the ruling party to influence the voters by misusing the power. In order to check this, the Election Commission has laid down some rules and regulations. They are:

1. The ruling party leaders shall not misuse the power, they should not use bureaucracy for party related works.



Voters' pledge

We the citizens of India, having abiding faith in democracy, hereby pledge to uphold the democratic traditions of our country and the dignity of free and fair peaceful elections, and to vote in every elections, fearlessly and without being influenced by considerations of religion, race, caste, community, language or any inducement.

2. Their official visits and party related visits shall not be mingled.
3. They should not use government vehicles for campaigning.
4. If more than three security vehicles are used in campaigning, it should be shown in poll expenditure
5. Model code of conduct will come into force after the dates of election schedule is announced.
6. The public properties like government buildings, offices, places shall not be used for campaigning by any party.
7. No advertisements of the government schemes shall be given either in print media or in electronic media.
8. Before giving announcements on TV, the political parties shall obtain permission of the Election Commission.
9. After the election notification is issued, the ruling government shall not release any grants, make payments and announce any new schemes. They should not start any new projects or give any kind of promise.



Conduct of elections at various levels

The Chief Electoral Officer at the state level assists the Election Commission of India. He/She is appointed by the Election Commission of India, after consulting the state government. This post does not have a constitutional status. Generally, the senior most IAS officers are appointed. The elections to the parliament and state assembly are held under his/her monitoring. At the district level, the District Collector acts as the Chief Election Officer.

To conduct and monitor elections in every constituency, an officer is appointed. He/she is called as the "Returning Officer". The candidates, who registered their names in the voters' list, are eligible and have zeal to be elected as representatives submit their nomination papers to the Returning Officer. Their nominations must be supported by at least one registered elector of the constituency. If a candidate is sponsored by a registered party, he/she is called the party candidate. The others are called the independents.

The Returning Officer scrutinizes the nominations and announces the eligible contesting candidates list. The contesting candidates are given the option to withdraw their nominations within the specified period. Later the Returning Officer shall declare the final list of contesting candidates in the constituency. The party candidates are allotted the party symbol and the independent candidates will be allotted the symbols available at that time. After this, the names and symbols of the contesting candidates are entered into EVM's (Electronic Voting Machine). The same procedure is followed for conducting elections to the parliament, state assemblies and local self-governing bodies.

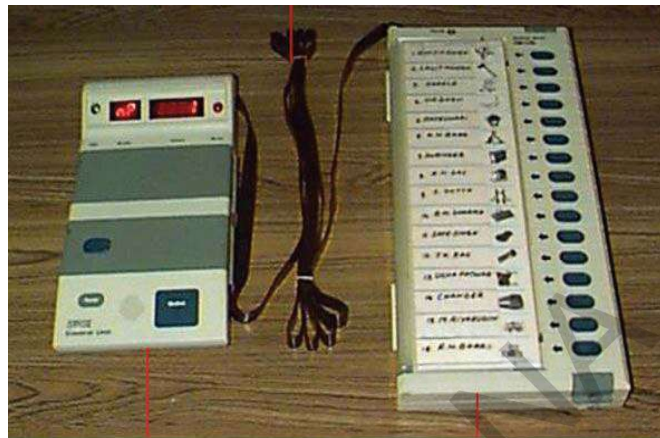


Fig 16.5: Control Unit, Ballot Unit

16.5 Voting Mechanism

The Chief Election Officers in the districts make elaborate arrangements to conduct the polls. They depute polling personnel as Presiding Officer and polling officers to every polling booth to conduct the polls. The Election Commission appoints observers to monitor the polls on the polling day. On the day of the poll, all the voters whose names are enrolled in the electoral list are allowed to cast their votes. Polling agents assist the polling staff to identify the voters, who are appointed by the contesting candidates. Indelible ink is applied to the left forefinger before they cast their vote. In case, EVM is not there, Swastik mark (卐) shall be applied on the ballot paper folded in the proper manner and put in the ballot box.

After the completion of polling, EVMs or ballot boxes are sealed and brought to the counting centres. Counting of the votes takes place at the counting centres. The candidate who secures highest number of votes is declared as elected. He/she is given a certificate by election officers.



Fig 16.6: Staff, discharging duties in polling booth

General Elections are conducted for every 5 years at national/state level. Before completion of 5 years tenure, if the elections are held for either assemblies or parliament are called '**mid term elections**'. The elections are conducted for one or more vacancies are termed as "**by-elections**".

16.5.1 Vote to reject – NOTA (None Of The Above)

On the basis of the judgment given by the Supreme Court in **2013** in the case of Peoples Union of Civil Liberties, NOTA is introduced. The Supreme Court stated that NOTA is a part of the freedom of expression. NOTA was first introduced as an option in the state assembly elections held in Delhi, Mizoram, Rajasthan, Madhya Pradesh and Chhattisgarh in 2013. NOTA is an option only. It does not affect either the winning or the losing capability of the candidates. If, the highest number of votes are polled for NOTA, the candidate who secures second position would be declared win.



Fig 16.7: NOTA Symbol

16.6 The need for Electoral reforms

India is the second most populous country in the world. It is a huge task to conduct elections in India. Every political party promises to give good governance, socio - economic equality, and the eradication of poverty. But few corrupted politicians, those who have criminal background adopt illegal practices to manage the voters. Their practices lead some to make fun of the election process.

Even though there are some problems in the democratic process, many examples of sincere and dedicated politicians made our democracy proud.



- Suggest a few measures for better democracy and ethical governance.
- If only one family enjoys the reservation in elections, how can the other members belong to the same community get the opportunity? Discuss your opinions.
- If a candidate spends a lot of money and wins the elections, how will his/her thought process be? If the voters take money to cast their votes, do they have a moral right to question their elected representatives for their problems? Discuss.



Postal Ballot

The polling staff who have deputed for polling duties responsibilities, have no scope to cast their vote because they will be deputed for polling duties to other stations rather than their work place. To avoid this the Election Commission facilitated with “postal ballot”. It means, those who are deputed for election duties, exercise their right to vote, before the commencement of the polling date with ballot paper. The election authorities send the postal ballot to the voter’s respective places with special facility.



Cancellation of Elections

In 2016, for the first time in the history of Election Commission, it cancelled the notification that it released earlier. The EC had cancelled the polls of Aravakurichi and Tanjavur constituencies “by-elections” in Tamilnadu, after the allegations of large sums of money was distributed. The Election Commission conducted election at a later point of time.



Keywords

- 1) Vote 2) Code of Conduct 3) EVM 4) Constituency 5) NOTA



Improve your learning

- 1) The right to vote plays a key role in democracy. Discuss.
- 2) Describe the role of Election Commission in India.
- 3) List the functions of the Election Commission.
- 4) Why is model code of conduct required in a democracy?
- 5) Our responsibility does not end with casting the vote. To protect the democracy, we should always be alert. Justify the statements.
- 6) Have you ever observed malpractices in the elections of your area? Which rule of Code of Conduct was violated?
- 7) Read the paragraph under “Need for election reforms “ and comment.
- 8) Prepare a pamphlet creating awareness about the importance of voting.



Project

- Collect the information of ideal politicians who have sacrificed their lives for the nation? What do we learn from their lives?
- Collect the information, create a table and analyse the results of Lok Sabha/ State Assembly elections held recently.